



Justification for Exception to Fair Opportunity, Exceeding the Simplified Acquisition Threshold, Law Enforcement Subscriptions (LexisNexis)

REFERENCE: Justification Log Number: FY25-0023 and PR Number: ADM250022

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Citizenship and Immigration Services (USCIS), Office of Contracting, proposes to award a delivery/task order or modify an existing delivery/task order on behalf of the Office of Administration (ADM), pursuant to Federal Acquisition Regulation (FAR) 16.505(b)(2), Exceptions to the fair opportunity process.

2. Nature and/or description of the action being approved.

USCIS intends to award a sole source order for law enforcement database subscription services through the only available source, Relx, Inc., doing business as (dba) LexisNexis Risk Solutions (aka “LexisNexis”), 1150 18th Street NW, Suite 600, Washington, DC 20036, UEI LKAAJG8KK4U1. The order will be placed under existing FedLINK Indefinite Delivery Indefinite Quantity (IDIQ) contract number LCFDL23D0035.

3. Description of Supplies/Services.

The Office of Administration has a requirement for the renewal of database subscription services currently provided by LexisNexis in order to maintain current access for USCIS. These subscriptions include access to LexisNexis’ databases of legal, news, business, public records research and Accurant for Law Enforcement. Accurant for Law Enforcement is a web-based investigative research solution that provides instant searchable access to billions of public and proprietary records. Accurant for Law Enforcement includes access to applicants’ public information as well as property records, leases, email address, dates of known addresses. Searches of the database are used to verify information on individuals’ assets and investigate inconsistencies between the evidence gathered and the public record. Agency personnel require access to public records information to perform regular searches to verify information about applicants and to prevent waste, fraud, and abuse.

The estimated total value for this effort is \$3,473,508.00 (inclusive of a base year and 1 option year). The active subscription period is as follows:

Law Enforcement Subscription Independent Government Estimate (IGCE)					
Item Description	QTY	Unit of Issue	Estimated Unit Cost	Estimated Discounted Unit Price	Estimated Fixed Price Per Line Item

Base Year: Accurint Bundle (POP: 03/30/2025-03/29/2026)	12	3,000	\$140,190.00	\$140,190.00	\$1,682,280.00
Base Year: Comprehensive Legal Bundle (POP: 03/30/2025-03/29/2026)	12	30	\$2,387.00	\$2,387.00	\$28,644.00
Option Year: Accurint Bundle (POP: 03/30/2026-03/29/2027)	12	3,000	\$144,400.00	\$144,400.00	\$1,732,800.00
Option Year: Comprehensive Legal Bundle (POP: 03/30/2026-03/29/2027)	12	30	\$2,482.00	\$2,482.00	\$29,784.00
Estimated Total Firm Fixed Price:					\$3,473,508.00

4. Statutory exception and supporting rationale.

The applicable statutory FAR citation and basis for using an exception to fair opportunity process is: FAR 16.505(b)(2)(i)(B). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Rationale:

RELX Inc., dba LexisNexis is the sole provider of the required investigative subscription services to fulfill USCIS' mission requirement for investigations.

LexisNexis' Accurint for Law Enforcement is a specialized, proprietary information sharing platform used by USCIS. It allows the agency to integrate public records with government proprietary databases into geographic information systems and criminal histories displayed with visualization technologies. The Accurint for Law Enforcement is a crucial required element of the database subscription services that LexisNexis provides to satisfy the mandatory investigative research needs USCIS conducts. Current users across USCIS rely on Accurint for Law Enforcement to find people of interest, uncover the connections between individuals, and ensure the public's safety. It provides instant access to a comprehensive database of public records that would ordinarily take days for investigators to collect. This product shortens investigation time, frees up staffing resources and minimizes the cost to the Government associated with lengthy investigations. Market research was conducted for other subscription products to support law enforcement investigations such as Westlaw and Clear offered through Thomson Reuters. They offer similar functionality and capability and meet some of the Government's needs, however, LexisNexis' database services are the only products found through market research capable of meeting all USCIS requirements. When compared to other vendors in the marketplace, LexisNexis offers unique capabilities that other platforms such as Westlaw and Clear do not possess, including:

- Virtual identity search which provides investigators the ability to search a subject's virtual presence;
- Real-time phone search directory that delivers access to numbers not currently found in Electronic Directory Assistance, including landline, cell, VoIP, unlisted, and unpublished phone numbers;
- A feature to check if number-letter sequences on global passports conform to published standards and if passport holder details (date of birth and gender) match;
- Ability for investigators to locate a subject's most recent address and phone number with available applications for iPhone, iPad and Android devices;
- A secure, reliable, and FBI's Criminal Justice Information Services (CJIS)-compliant interface for sharing criminal justice data;
- Public records data resolution and linking technology that delivers precise and reliable results;
- Public records search results and reports in less than five seconds;
- Experienced support from experts in law enforcement, intelligence, military policing, and data analytics.
- Ability to create customizable reports, access key data, and save information to dashboards.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer (CO) has determined that the anticipated cost to Government for the resulting order for database subscription services will be fair and reasonable. The subscription services are on the FedLINK IDIQ and the prices have already been negotiated and found fair and reasonable on the base contract. The Government routinely receives discounts from the negotiated prices.

6. Any other facts supporting the justification.

LexisNexis is the sole provider of the required subscription services and there are no authorized resellers. Failure to procure LexisNexis subscriptions will result in USCIS Immigration Officers and FDNS officers/investigators being unable to fully perform their duties, resulting in the potential for failure of the USCIS mission and possibly jeopardizing the safety of both potential immigrants/applicants and the public.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

The Government performs on-going market research to determine if there have been new entrants into the marketplace or if existing database vendors have added products that will meet the minimum requirements of the Government. Before another contract award is made, or option under the existing contract vehicle is exercised, the Government will ensure that there are no other viable competitive means to fulfill this need.

8. USCIS intends to post this requirement on SAM.gov pursuant to FAR 16.505(b)(2)(ii)(D).

9. Technical/Requirements Personnel Certification.

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.

Eugenie J. Kim
Management and Program Analyst

Date

10. Contracting Officer Certification

Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that this justification is accurate and complete to the best of my knowledge and belief.

Scott A. Achin
Contracting Officer

Date

APPROVAL: Pursuant to FAR 16.505(b)(2)(ii)(B)(10), I hereby determine the circumstance identified in Section 4 applies to the order.

Daniel J. Knapp
Procuring Activity Advocate for Competition

Date